

**Court No. - 37**

**Case :-** WRIT - C No. - 52889 of 2006

**Petitioner :-** Suyash Kraft And Papers Ltd.

**Respondent :-** U.P. Power Corporation Ltd. And Others

**Counsel for Petitioner :-** Bidhan Chandra Rai

**Counsel for Respondent :-** Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,Anubhav Trivedi

**Hon'ble Bala Krishna Narayana,J.**

**Hon'ble Irshad Ali,J.**

As prayed on behalf of learned counsel for the appellant, list this case in the next cause list.

**Order Date :-** 2.1.2018

HR

**Court No. - 37**

**Case :-** WRIT - C No. - 52889 of 2006

**Petitioner :-** Suyash Kraft And Papers Ltd.

**Respondent :-** U.P. Power Corporation Ltd. And Others

**Counsel for Petitioner :-** Bidhan Chandra Rai

**Counsel for Respondent :-** Addl. S.G.I.,A.K. Mehrotra,A.N. Singh,Anubhav Trivedi

**Hon'ble Bala Krishna Narayana,J.**

**Hon'ble Irshad Ali,J.**

Heard Sri Dinesh Rai holding brief of Sri B.C. Rai, learned counsel for the petitioner.

This writ petition has been filed by the petitioner with the following prayer:-

*(a) issue a writ, order or direction in the nature of certiorari calling for records and to quash the demand notice dated 21.8.2006 (Annexure No.-1 to the writ petition) and letter dated 11.2.2005 (Annexure No. 3 to the writ petition) issued by the respondent no. 5.'*

*(b) issue a writ, order or direction in the nature of mandamus declaring Clause 4.20 (1) and 4.20(i) of U.P. electricity Supply Code, 2005 as ultra virus of Section 47(5) and (4) of Electricity Act, 2003;*

*(c) issue writ, order or direction in the nature of mandamus directing respondent no. 3 to supply electricity to the petitioner by installing pre-payment matter;*

*(d) issue writ, order or direction in the nature of mandamus directing respondent no. 3 to refund, credit or adjust the amount of security already paid to the UPPCL with interest calculated at Bank rate in future consumption bills;*

*(e) issue any other writ, order or direction as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case; and*

*(f) Award the costs of the writ petitioner in favour of the petitioner.*

Learned counsel for the petitioner very fairly stated at bar that the controversy involved in the writ petition for determination stands concluded by a Division Bench decision of this Court rendered in Writ-C No. 30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.)) and State of U.P. and three others along with other connected matters and since the identical writ petition, namely, Writ-C No. 30898 of 2016 has already been dismissed by this Court, hence, this writ petition may also be dismissed.

In view of the statement made by learned counsel for the petitioner, the present writ petition is also **dismissed**.

**Order Date :-** 11.1.2018 / Manoj